

Federal Maritime Commission

MARINE TRANSPORT LOGISTICS, INC.

Complainant

v.

CMA-CGM (AMERICA), LLC

Respondent

Docket No. 18-07

MTL's OPPOSITION TO CMA's
MOTION TO DISMISS & MTL's
CROSS-MOTION FOR LEAVE
TO FILE AN AMENDED
COMPLAINT.

PRELIMINARY STATEMENT

The original complaint alleges three causes of action under the Shipping Act: Sections §§41102(c), 41104(9) and 41104(10). Except for the initial disclosures, there has been no discovery in this case, so it is submitted that CMA's motion should be treated as motion on the pleadings, such as pursuant to Federal Rules of Civil Procedure 12(c),¹ which states: "After the pleadings are closed — but early enough not to delay trial — a party may move for judgment on the pleadings." When deciding such a motion, courts apply the same standard as under the *Rule*

¹ The fact that discovery did not advance past initial disclosures is not the fault of Complainant, MTL. CMA cited repeatedly great legal costs to them if this case were to proceed to discovery and beyond. To settle this case, MTL agreed to pay \$19,000 to CMA and change the destination of the idling containers to Benghazi. However, CMA refused to do so claiming recently that regulations prohibit the ports to accept vehicles older than 5 years from the date of manufacture and such is the reason they claim they did not honor the COD. This turned out to be not true, and is another reason why MTL is claiming to be discriminated by CMA, is that as is seen in these papers below, CMA, and other carriers continue to ship used vehicles to Benghazi irrespective of this alleged restriction. CMA does not attach a single exhibit to establish any of their assertions in their moving papers.

12(b)(6) motion, “Thus, accepting the allegations contained in the complaint as true and drawing all reasonable inferences in favor of the plaintiff, a complaint should not be dismissed under Rule 12(c) unless it ‘appears beyond doubt that the plaintiff can prove no set of facts in support of his claim which would entitle him to relief.’” *Greco v. Trauner, Cohen Thomas, L.L.P.*, 412 F.3d 360, 363 (2d Cir. 2005).

Additionally, it is respectfully being submitted that since this complaint was filed with the FMC before the new interpretative rule went into effect as to §41102(c), leave to amend should be freely given to plead additional facts, including facts that allege unfair, discriminatory, and unsubstantiated imposition of demurrage charges on a systematic level that have the result of impeding shipping and delivery of containers until either the shipper or consignee has no choice but to pay the demanded amounts under the threat that their cargo will be sold at auction.

It is further submitted that leave to amend should be freely given in any case, pursuant to Federal Rule of Civil Procedure 15(a)(2): “The court should freely give leave when justice so requires.” Therefore, if this case (as to §41102(c)) will not be adjudicated by the FMC under the standard that was applicable when this case was filed, this is more of a reason to grant leave to amend. It is further submitted that, for the reasons delineated below, even under the original complaint, evidence exists for allowing this original complaint to go forward as to all causes of action.

When the proposed interpretive rule, as to §41102(c), was published (Federal Register/ Vol. 83, No. 174), it said: “Specifically, the Commission is considering an interpretive rule consistent with Commission precedent articulated in cases including *Intercoastal Investigation*,

Altieri, Stockton Elevators, European Trade, A.N. Deringer, and Kamara that would restore the scope of Sec. 41102(c) to prohibiting unjust and unreasonable *practices and regulations*.”

In one of the cases cited above, In *J.M. Altieri v. Puerto Rico Ports Authority*, it was stated: “On the other hand, the shipping agencies have taken cognizance under section 17 of such practices as the unfair charging of demurrage, *Atlantic Syrup Refining Co. v. Luckenbach Steamship Co.*, 2 U.S.M.C. 521 (1941); *Sigfried Olsen v. War Shipping Administration et al.*, 3 F.M.B. 254 (1950); and the refusal, by a carrier that was claiming both dead freight and detention damage to deliver, the cargo, *Hecht, Levis and Kahn, Inc., et al. v. Isbrandtsen Co., Inc.*, 3 F.M.B. 798 (1950).” 7 F.M.C. 416, 419 (ALJ 1962).

In *Altieri*, the Commission goes on to note that “By the time the respondent refused to refund the money, the purely shipping aspects of the transaction has been completed.” *Id.* At 420. It is submitted that this is the opposite of the case involving MTL and CMA, where MTL paid initially to deliver the disputed containers to its destination, however, such containers were idling, and are still idling, at the port of Jeddah, except one container that without notice to MTL had been delivered to the Port of Aden. These containers have been stuck in the Port of Jeddah for over a year and a half.

The Commission further noted in *Altieri*: “A dispute as to liability for demurrage or as to the amount of it; or even a persistent and continuing shuffling of the accounts of importers might fall within section 17.” *Id.* Furthermore, the Commission stated: “If the action of respondent were one of a series of such occurrences, a *practice*, might be spelled out that would invoke the coverage of section 17.” *Id.*

In the case involving CMA and MTL, the original complaint alleges multiple acts by the Respondent (CMA), which, it is submitted, pursuant to *Altieri*, imply a “practice.” Specifically, paragraph 7 of the original complaint (*See Ex. 8*) deals with 6 containers that are still, except for one, idling in the Port of Jeddah, and paragraphs 9 and 13 of the original complaint deal with containers that (at the time the complaint was filed) were idling at the Port of Jebel Ali...and paragraph 23 references another container for which MTL’s client had to pay around \$10,000 in demurrage, involving the Port of Salalah.

As to the proposition delineated in the proposed verified amended complaint (attached hereto as Exhibit “7”), as to CMA’s practice of failure of setting and observing just and reasonable rules for charging demurrage and storage charges, CMA was seeking around \$89,740 from MTL, however, most shockingly, another office of CMA told MTL and the consignee that the containers could be released after it appears the consignee paid just \$1,000. Therefore, it is submitted that good faith exists to file an amended complaint as is seen in more detail below.

Additionally, in *Altieri*, the Commission noted that there the dispute was simply over whether the shipping company must refund a single overpayment and that this question is “not so peculiar to shipping matters” and likened the transaction involved as “the same as if the overpayment were on the purchase price of groceries.”

It is again being respectfully submitted that no such similarity exists with respect to the issues presented involving CMA and MTL. The conduct alleged in the original and the proposed amended complaint is continuous and, at least with respect to MTL, spans almost two years now and such conduct directly impacts “shipping matters” as 5 of the alleged containers are still idling and have not reached their final destination for which MTL fully paid.

This is not just a contract dispute as CMA claims in their moving papers. And, it is respectfully submitted, what is happening here for almost two years, is not a single transaction that can be likened to overpayment for the purchase of groceries as pointed out in *Altieri*.

I. THE ORIGINAL COMPLAINT LISTS THREE OCCURRENCES AND THE PROPOSED AMENDED COMPLAINT ADDS TWO ADDITIONAL OCCURRENCES SO THAT A PRACTICE COULD BE IMPLIED AS TO SHIPPING MATTERS.

A. Occurrence involving 2 containers that idled in the Port of Jebel Ali (CMAU545680 & TCLU5063972)

With respect to the cargo shipped to Yemen, CMA had and, upon information and belief, currently has a current written policy in place, which was sent to MTL on December 6, 2017, as alleged in paragraph 8 of the original complaint, which states in part:

Due to uncertain and deteriorating situation in Yemen, CMA CGM will immediately stop accepting bookings of all motor vehicles, including motorcycles, four-wheel drive vehicles and trucks, spare parts for all vehicles, fertilizers and all chemical products with Port of Discharge Aden. In addition, no bookings for any commodity will be accepted to Port of Discharge Hodeidah. These restrictions will go into effective immediately.

For existing bookings falling under the above restrictions where the container has been released to the shipper, but not received by CMA CGM, CMA CGM will allow a Change of Destination (COD) to any other Port of Discharge, subject to a COD fee, and provided the cargo otherwise conform to the respective country rules and regulations of the new intended destination, including for motor vehicles, any applicable age restrictions. In the alternative, shippers will be allowed to cancel the booking and return the empty container to CMA CGM. No cancelled booking fee will apply and shippers will be granted an additional 3 working days free time on top of any existing free time per the governing tariff or an applicable service contract.

The allegations in the original complaint that must be taken as truth on CMA's motion to dismiss on the pleadings, then allege instances when this policy was not observed, namely in paragraphs 8-14. For example, in paragraph 9, it is alleged that On January 19, 2018, CMA e-

mailed MTL stating that “We can resume service to Aden...” which is in direct contradiction to the above-stated policy communicated to MTL on December 6, 2017. If according to CMA, service was resumed to Aden, then why did CMA not deliver these two containers? According to CMA, these containers were at the port of NY/NJ from December 5, 2017 to February 21, 2018 for which CMA claims around \$42,000 in demurrage charges, in addition to storage charges, were owed. (Ex. 1, CMA’s initial disclosures). CMA never justified such inaction and collected unsubstantiated demurrage/storage charges from CMA’s customers before releasing these containers, which, upon information and belief, amounted to around \$17,000 USD. (Ex. 2). Why did CMA release the containers for \$17,000 when they tried to collect \$42,000 from MTL?

Moreover, CMA never justified or substantiated the \$42,000 in demurrage charges, which is also a fact sought to be added to the proposed amended complaint as to allegations of failure to establish just and reasonable rules and practices with respect to the assessment of demurrage, detention and storage charges.

- B. Occurrence involving the following 6 containers: ECMU9889149, TCNU1194396, ECMU9385446, SEGU4981655, BEAU4065028, CMAU7430348.

CMA never updated and never advised to change the destination after January 19, 2018, where it told MTL service to Aden was resumed (See paragraph 12 of the original complaint), even though MTL advised CMA to change such, including the latest attempt with the request to Benghazi, which according to CMA, there is a manufacturing restriction for vehicles older than 5 years from the date of manufacture. (Ex. 3). However, CMA and other carriers such as Hapag-Lloyd, Maersk Line, & MSC, continue to ship vehicles with the supposed manufacturing restriction for other containers, just, for some reason, not the containers idling in Jeddah where

the shipper is MTL (Ex. 4). Therefore, it is alleged that CMA's practice appears to be to arbitrarily select which CODs they will honor and which they will not, with such action having a direct impact on shipping.

It appears that CMA never intended to honor any change in destination with respect to MTL as is evidenced by the email from CMA on May 10, 2019 (Ex. 5) stating that the price for the idling containers was reduced to \$5,000 total which was already paid by the consignees, yet CMA initially sought close to \$90,000 from MTL (Ex. 6) and the most latest offer of \$19,000, which MTL agreed to pay. None of these figures have been substantiated via clear invoices or explained how they were calculated. Furthermore, it appears to the practice of CMA is to go behind the back of the entity with whom they have a direct contract, MTL in this case, and trying to obtain whatever demurrage they can from the consignees and then, without disclosing that this was done, trying to get another, unsubstantiated, amount from the other contracting party, and such is the subject of the proposed amended complaint.

C. Violation of Section 41104(a)(9) or 41104(a)(3) of the Shipping Act

The original complaint, at paragraphs 17 to 18, alleges an imposition of undue and unreasonable prejudice or disadvantage as to MTL. Even though the allegations were listed under 41104(a)(9), they could also be alleged under section 41104(a)(3) as listed in the proposed amended complaint. As stated above, with respect to containers CMAU545680 & TCLU5063972, on January 19, 2018, CMA advised MTL that service was resumed to Aden, but irrespective of such, failed to ship these two containers to the Port of Aden, which were at the port of NY/NJ from December 5, 2017 to February 21, 2018 for which CMA claims \$42,000 in demurrage charges, in addition to storage charges, were owed. (See Ex. 3). CMA never

justified such inaction and collected unsubstantiated demurrage/storage charges from CMA's customers before releasing these containers, which, upon information and belief, amounted to around \$17,000 USD. (See Ex. 4).

With respect to Section 41104(9), CMA argues in their motion that MTL does not have standing to make such an allegation as "The plain language of 46 U.S.C. 41104(9) makes it clear that its prohibitions protect ports, not shippers such as MTL."

It is being submitted that the language in the statute — "unreasonable prejudice or disadvantage with respect to any port" — does not only apply to protecting ports and localities as CMA claims. What would it mean to protect ports and localities? A foreign port is under the supervision of its local authorities. This part of the Act is subject to another interpretation as, for example, put forth by a summary written by the Congressional Research Service, which is a nonpartisan division of the Library of Congress, entitled "S. 414 (105th): Ocean Shipping Reform Act of 1998." A portion of this summary reads:

Revises certain provisions with respect to a conference or group of two or more common carriers to prohibit them from: (1) negotiating with a nonocean carrier or group of nonocean carriers (for example, truck, rail, or air operators) on any matter relating to rates or services provided to ocean common carriers by such nonocean carriers, unless such negotiations and any resulting agreements are not in violation of the antitrust laws and are consistent with the purposes of this Act; or (2) for service pursuant to a service contract, engaging in any unjustly discriminatory practice in the matter of rates or charges, or giving any undue or unreasonable preference or advantage, or imposing any undue or unreasonable prejudice or disadvantage, *with respect to any locality, port, or persons due to those persons' status as shippers' associations or ocean transportation intermediaries*. Prohibits a marine terminal operator from giving any undue or unreasonable preference or advantage or imposing any undue or unreasonable prejudice or disadvantage with respect to any person.

II. CMA's SECTION 40502(f) ARGUMENTS

CMA states in their motion that "The Complaint seeks remedies for an alleged breach of contract, since all shipments at issue were made pursuant to a service contract between CMA and MTL, and therefore must be dismissed pursuant to 46 U.S.C. §40502(f).

As an initial matter, CMA fails to produce any evidence that all shipments at issue were pursuant to a service contract; however, in any case, it is submitted that it is simply false that the complaint seeks remedies for breach of contract: the complaint, and also the proposed amended complaint, seeks remedies pursuant to Sections 41102(c), 41104(3), 41104(9) and 41104(10) of the Shipping Act.

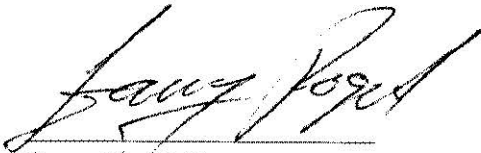
Additionally, all service contract are subject to the Shipping Act: 46 U.S.C. §40502(a) states explicitly: "An individual ocean common carrier or an agreement between or among ocean common carriers may enter into a service contract with one or more shippers subject to the requirements of this part." Therefore, it is respectfully being submitted that the Commission has jurisdiction to review conduct that arises out of a service contract.

CONCLUSION

It is respectfully being requested that for all of the foregoing reasons, FMC should not dismiss this case as MTL turned to FMC for assistance first by an informal Rapid Response Request procedure in July of 2018. These issues involved and continue to involve shipping matters for which FMC is best suited to address and investigate.

Dated: August 6, 2019

Respectfully Submitted,

A handwritten signature in black ink, appearing to read "Garry Pogil". The signature is fluid and cursive, with a horizontal line drawn underneath it.

Garry Pogil, Esq
112 West 34 Street
18 Floor
New York, NY 10120
Tel: 212-946-4874 / 917-593-1466
Email: garry.pogil@gmail.com

EXHIBIT "1"

CMA CGM (America) LLC
5701 Lake Wright Drive
Norfolk, VA, 23502



Established in Norfolk
Invoice Date : 12-OCT-18
Invoice Number : 186354
Type : Demurrage invoice
Cross Ref :

ORIGINAL

Invoice

Attention of :
Customer Code : 0001798550001 / 143
Customer Name : MARINE TRANSPORT LOGIST
Customer Address : Attn: Accounts Payable
63 HOOK ROAD
BAYONNE NJ 07002

Reference : BL# NAM2935611- Y286INE - E - USNYC - AEJEA - 12-OCT-2018

Item /description	Vessel Voyage	Date	POL - POD POO - FPD	Unit Price Qty	Amount (USD)
(C)* DEM TCLU5063972 12/13-12/14/17	CGNER Y286INE	22-FEB-18	USNYC - AEJEA	200.00 2.00	400.00
(C)* DEM TCLU5063972 12/15-12/18/17	CGNER Y286INE	22-FEB-18	USNYC - AEJEA	255.00 4.00	1,020.00
(C)* DEM TCLU5063972 12/19-2/16/18	CGNER Y286INE	22-FEB-18	USNYC - AEJEA	410.00 60.00	24,600.00
(C)* DEM CMAU5454680 12/13-12/14/17	CGNER Y286INE	22-FEB-18	USNYC - AEJEA	200.00 2.00	400.00
(C)* DEM CMAU5454680 12/15-12/18/17	CGNER Y286INE	22-FEB-18	USNYC - AEJEA	255.00 4.00	1,020.00
(C)* DEM CMAU5454680 12/19-2/6/18	CGNER Y286INE	22-FEB-18	USNYC - AEJEA	410.00 60.00	24,600.00
(C)* LESS CREDIT NOTE NAEX2520234	CGNER Y286INE	22-FEB-18	USNYC - AEJEA	-10,220.00 1.00	-10,220.00

Issued By :GENEEN SABATTIS

TAX Amount : 0.00 Gross amount :
Total Net Amount Due in USD 41,820.00

C* = item billed on the name and on behalf of CMA CGM S.A.
FR72562024422 - 4, quai d'Arenc - 13235 Marseille Cedex 02 - France

Page 1 / 2

CMA CGM (America) LLC, 5701 Lake Wright Drive, Norfolk, VA, 23502, United States - Tel :757-961-2100 - Fax :1-877-634-6419 - Internet site :http://www.cma-cgm.com

CMA CGM (America) LLC
5701 Lake Wright Drive
Norfolk, VA, 23502



Established in Norfolk
Invoice Date : 12-OCT-18
Invoice Number : 166354
Type : Demurrage invoice
Cross Ref :

ORIGINAL

Invoice

Item /description	Vessel Voyage	Date	POL - POD POO - FPD	Unit Price Qty	Amount (USD)
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Remarks :B/L NAM2935611 BKG NAM2935611 CNTRS TCLU5063972 CMAU5454680 DEMURRAGE

Terms : IMMEDIATE
Due By : 12-OCT-18

Please Remit Checks To CMA CGM (America) LLC
5701 Lake Wright Drive
Norfolk VA VA 23502

Please Remit Wires To: CMA CGM & ANL Securities
Wells Fargo Bank
440 Monticello Avenue
Suite 1100
Norfolk, VA 23510
Account Number: 4985253863
ABA: 121000248
SWIFT: WFBUS6S

Payment shall be made for full amount on or prior due date, free of charges, without any deduction nor discount for advance payment. All bank charges are for the account of the payer-remitter.

C* = item billed on the name and on behalf of CMA CGM S.A.
FR72562024422 - 4, quai d'Arenc - 13235 Marseille Cedex 02 - France

Page 2 / 2

CMA CGM (America) LLC, 5701 Lake Wright Drive, Norfolk, VA, 23502, United States - Tel :757-961-2100 - Fax :1-877-634-8419 - Internet site :<http://www.cma-cgm.com>

EXHIBIT "2"

From: Ayman Mahmoud <usedsparept3@hotmail.com>
Sent: Tuesday, July 17, 2018 1:56 PM
To: Alla Solovyev <alla@mtlworld.com>
Subject: CMA DETENTION

Alla,

With regards to the 2 CMA containers (CMAU5454680 / TCLU5063972) these container are not held in the port. The reason we cleared them is because JEBAL ALI port authorities informed us that if containers stay longer than 3 months in the port they will put them up for auction, and that would have caused a chaotic situation between us and the customers that we sold the vehicles to. The second reason is that port authorities would have charged us relentlessly the same amount of detention as CMA and all of this would have been in vain anyway. So due to these reasons we had to clear these containers, and attached is the detention charges that we paid which came out to \$17,520. Please inform the lawyer about this situation so that it can be known and cleared up, thank you.

NEJOUN ALJAZEERA USED CARS TRADING L.L.C.
SPECIALIZE IN SHIPPING FROM USA & CAR SALES
AYMAN MAHMOUD (GM)
MOB PHONE# 00971551000556



CMA YEMEN
STORAGE.pdf

EXHIBIT "3"

From: ARBONA Draughn - NOR usa.darbona@usa.cma-cgm.com
Subject: RE: COD freight rates for Benghazi
Date: May 16, 2019 at 6:07 PM
To: Garry Pogil garry.pogil@gmail.com
Cc: SPRING Heather - NOR usa.hspring@usa.cma-cgm.com



Garry,

I checked each of the BLs at issue for which MTL has requested a COD to Libya, and confirm that none of the containers can be imported to Libya since all containers include used autos that are more than 5 years old.

Is MTL interested in an alternative COD location? CMA has been more than reasonable; we look forward to hearing what solution they propose.



Draughn ARBONA
Deputy General Counsel, N. America

Direct line: 1 (757) 961 - 2132
VOIP: 8108 2132
Mobile: 1 (504) 473 - 8652
5701 Lake Wright Drive
Norfolk Va, 23502
www.cma-cgm.com

From: ARBONA Draughn - NOR
Sent: Wednesday, May 15, 2019 6:35 PM
To: Garry Pogil <garry.pogil@gmail.com>
Cc: SPRING Heather - NOR <usa.hspring@usa.cma-cgm.com>
Subject: RE: COD freight rates for Benghazi

Garry,

I've asked our Trade team to confirm the freight amounts paid for these shipments. Regardless, an extra journey leg would essentially be added to re-position these shipments to Libya so please understand that additional costs apply.

In the meantime, I am highly concerned by a message received from CMA CGM's Dubai Regional Office. See below excerpt:

But the Most Important fact remains that cargo is Used Vehicles which are old then 5 years. There is an restriction to import vehicles older than 5 years at Benghazi, Libya. Therefore, we cannot export this container there.

EXHIBIT "4"

SHIPPER/EXPORTER (2)
MARINE TRANSPORT LOGISTICS INC
(866916) 63 NEW HOOK ROAD
BAYONNE NJ
07002 UNITED STATES

DOCUMENT NO (5)

NAM3460766

NAM3460766

EXPORT REFERENCES (6)

SHIPPER REFERENCE: EO-57047

CONSIGNEE (3) (NOT NEGOTIABLE UNLESS CONSIGNED TO ORDER)

DOGAL SHIPPING AGENCIES CO
ABDUL NASSER STREET,
COMMERCIAL COMPLEX, OFFICE 303,
TEL: 218619096148,
BENGHAZI LIBYA

FORWARDING AGENT - REFERENCES (7)

CHB:

FMC:

NOTIFY (4)

DOGAL SHIPPING AGENCIES CO
ABDUL NASSER STREET,
COMMERCIAL COMPLEX, OFFICE 303,
TEL: 218619096148,
BENGHAZI LIBYA

POINT AND COUNTRY OF ORIGIN (8)

DOMESTIC ROUTING/EXPORT INSTRUCTIONS (9)

NO SED REQUIRED - X20190430106521 X20190430106564
X20190430106604

PIER/TERMINAL (10)

BARBOURS CUT TERMINAL

COMBINED TRANSPORT*
PRECARRIAGE FROM (10A)

VESSEL (11)

SANTA VANESSA
OGY36E1MA

PORT OF LOADING (12)

HOUSTON, TX, UNITED STATES

PORT OF DISCHARGE FROM VESSEL (13)

BINGAZI

FOR TRANSHIPMENT TO (14)

COMBINED TRANSPORT - ONWARD CARRIAGE (15)*

CARRIER'S RECEIPT

MARKS AND NUMBERS
(16)NO. OF PKGS.
(17)

PARTICULARS FURNISHED BY SHIPPER - CARRIER NOT RESPONSIBLE

DESCRIPTION OF GOODS (18)
SHIPPER'S STOW, LOAD AND COUNTGROSS WEIGHT
(19)MEASUREMENT
(20)

1x40HC CONTAINER:

SEGU5209076
SN# BM-928892

3

VEHICLES

2000 TOYOTA TUNDRA SR5 - 1,939.56 KG

VIN: STBRT3410YS002965

2009 KIA BORREGO EX; LX - 2,023.02 KG

VIN: XNDJH741X95017414

1997 TOYOTA 4RUNNER BASE - 1,580.77 KG

VIN: JT3GM84R1V0013460

HS CODE: 8703230190

BATTERIES DISCONNECTED, FUEL TANK(S) DRAINED

HS CODE : 8703230190

5543.350KGS

TOTAL

5543.350KGS

S/C # 18-1782

3

FREIGHT PREPAID

DRAFT

SHIPPER'S STOW, LOAD AND COUNT / F C L

CARGO AT PORT IS AT RECEIVER'S RISK, EXPENSES AND RESPONSIBILITY

FREE OUT

AS PER LIBYAN DECREE NR 17, NO DETENTION CHARGES ARE PAYABLE IF CONSIGNEES RETURN THE CONTAINER WITHIN TEN DAYS AFTER DAY OF BERTHING OF VESSEL. RETURN LATER THAN TEN DAYS WILL BE SUBJECT TO A DETENTION CHARGE OF USD 5/20FT OR USD 8/40FT PER DAY FROM 11th UNTIL 30th DAY AND USD 3/20FT OR USD 12/40FT PER DAY AS FROM 31st DAY. ALL CARGO EXPENSES INCLUDING RELOADING OF EMPTY EQUIPMENT ARE FOR RECEIVERS ACCOUNT.

UNLESS THE VALUE OF CARGO IS DECLARED ON THE FACE OF THIS BILL OF LADING OR WAYBILL IN THE CONDITIONS SET FOR

SHIPPER'S DECLARED VALUE

SUBJECT TO EXTRA FREIGHT AS PER TARIFF AND CLAUSE 10 OF THIS B/L

If above commodities, technology, or software were exported from the U.S., the Export Administration Regulations must be complied by the Merchant. Diversions contrary to U.S. law prohibited.

If the Pre-Carriage or Onward Carriage boxes are filled out, shipment will be treated as Through Combined Transport. Carrier undertakes entire transport from the place where the goods are taken in charge to the place designated for their delivery and assumes full liability for such transport as per clause 15.

RECEIVED in external good order and condition, except as otherwise indicated herein, the number of packages listed in the Carriers Receipt, said to contain the goods described in the Particulars Furnished by Shipper (contents, weight and measurement unknown to Carrier) to be transported to the port of discharge, or to such other place authorized or permitted herein, or so near thereto as the vessel can get, lie and leave, always in safety and without delay, and there to be delivered to consignee, or authorized receiver, or on carrier on payment of all charges due thereon.

All claims and actions arising between the Carrier and the Merchant in relation with the contract of Carriage evidenced by this Bill of Lading shall exclusively be brought before the Tribunal de Commerce de Marseille and no other Court shall have jurisdiction with regards to any such claim or action. Notwithstanding the above, the Carrier is also entitled to bring the claim or action before the Court of the place where the defendant has his registered office.

IN WITNESS WHEREOF THREE (3)

Bills of Lading all of like tenor, have been executed, ONE of which being accomplished, the other shall stand void.

DAY MONTH YEAR

BL/No.
CMDU

04-MAY-19

NAM3460766

Signed for the Carrier CMA CGM SA by
CMA CGM (AMERICA) LLC as agent for the Carrier

By

(Continued on reverse side)

SHIPPER/EXPORTER (2)
MARINE TRANSPORT LOGISTICS INC
(866918) 63 NEW HOOK ROAD
BAYONNE NJ
07002 UNITED STATES

DOCUMENT NO (5)

NAM3460766

NAM3460766

EXPORT REFERENCES (6)

SHIPPER REFERENCE: EO-57047

CONSIGNEE (3) (NOT NEGOTIABLE UNLESS CONSIGNED TO ORDER)

DOGAL SHIPPING AGENCIES CO
ABDUL NASSER STREET,
COMMERCIAL COMPLEX, OFFICE 303,
TEL: 218619096148,
BENGHAZI LIBYA

FORWARDING AGENT - REFERENCES (7)

CHB:

FMC:

NOTIFY (4)

DOGAL SHIPPING AGENCIES CO
ABDUL NASSER STREET,
COMMERCIAL COMPLEX, OFFICE 303,
TEL: 218619096148,
BENGHAZI LIBYA

POINT AND COUNTRY OF ORIGIN (8)

DOMESTIC ROUTING/EXPORT INSTRUCTIONS (9)

NO SED REQUIRED - X20190430106521 X20190430106564
X20190430106604

PIER/TERMINAL (10)

BARBOURS CUT TERMINAL

COMBINED TRANSPORT*
PRECARRIAGE FROM (10A)

VESSEL (11)

SANTA VANESSA
0GY36E1MA

PORT OF LOADING (12)

HOUSTON, TX, UNITED STATES

PORT OF DISCHARGE FROM VESSEL (13) FOR TRANSHIPMENT TO (14)

BINGAZI

COMBINED TRANSPORT - ONWARD CARRIAGE (15)*

CARRIER'S RECEIPT

MARKS AND NUMBERS

(16)

NO. OF PKGS.

(17)

PARTICULARS FURNISHED BY SHIPPER - CARRIER NOT RESPONSIBLE

DESCRIPTION OF GOODS (18)

SHIPPERS STOW LOAD AND COUNT

GROSS WEIGHT

(19)

MEASUREMENT

(20)

ON THE REVERSE, LIMITATION OF LIABILITY IN RESPECT OF LOSS OR DAMAGE TO GOODS SHALL NOT EXCEED USD 500.00 PER PACKAGE, OR CUSTOMARY FREIGHT UNIT IF GOODS ARE NOT SHIPPED IN PACKAGE.

FOR THE PURPOSE OF THE PRESENT CARRIAGE, CLAUSE 14(2) SHALL INCLUDE THE APPLICATION OF THE YORK/ANTWERP RULES, 2004.

MIS-DECLARATION OF CARGO WEIGHT ENDANGERS CREW, PORT WORKERS AND VESSELS' SAFETY. YOUR CARGO MAY BE WEIGHED AT ANY PLACE AND TIME OF CARRIAGE AND ANY MIS-DECLARATION WILL EXPOSE YOU TO CLAIMS FOR ALL LOSSES, EXPENSES OR DAMAGES WHATSOEVER RESULTING THEREOF AND BE SUBJECT TO FREIGHT SURCHARGE.

The Shipper acknowledges that the Carrier may carry the Goods identified in this Bill of Lading on the deck of any vessel and in taking remittance of this Bill of Lading the Merchant (including the Shipper, the Consignee and the Holder of the Bill of Lading, as the case may be) confirms his express acceptance of all the terms and conditions of this Bill of Lading and expressly confirms his unconditional and irrevocable consent to the possible carriage of the Goods on the deck of any vessel.

By tendering the hazardous goods for carriage, Merchant guarantees the accuracy of the description of the goods and undertakes to warn the consignee, the notify party, and all its sub contractors on the transport, storage and handling prescriptions referred to in the IMDG Code and the Material Safety Data Sheet. Merchant's particular attention is drawn on clause 20 of this bill of lading.

SHIPPERS DECLARED VALUE

SUBJECT TO EXTRA FREIGHT AS PER TARIFF AND CLAUSE 10 OF THIS B/L

If above commodities, technology, or software were exported from the U.S., the Export Administration Regulations must be complied by the Merchant. Diversions contrary to U.S. law prohibited.

"If the Pre-Carriage or Onward Carriage boxes are filled out, shipment will be treated as Through Combined Transport. Carrier undertakes entire transport from the place where the goods are taken in charge to the place designated for their delivery and assumes full liability for such transport as per clause 15.

RECEIVED in external good order and condition, except as otherwise indicated herein, the number of packages listed in the Carriers Receipt, said to contain the goods described in the Particulars Furnished by Shipper (contents, weight and measurement unknown to Carrier) to be transported to the port of discharge, or to such other place authorized or permitted herein, or so near thereto as the vessel can get, lie and leave, always in safety and without delay, and there to be delivered to consignee, or authorized receiver, or on carrier on payment of all charges due thereon.

All claims and actions arising between the Carrier and the Merchant in relation with the contract of Carriage evidenced by this Bill of Lading shall exclusively be brought before the Tribunal de Commerce de Marseille and no other Court shall have jurisdiction with regards to any such claim or action. Notwithstanding the above, the Carrier is also entitled to bring the claim or action before the Court of the place where the defendant has his registered office.

IN WITNESS WHEREOF THREE (3)

Bills of Lading all of like tenor, have been executed, ONE of which being accomplished, the other shall stand void.

DAY MONTH YEAR

BL/No.
CMDU

04-MAY-19

NAM3460766

Signed for the Carrier CMA CGM SA by
CMA CGM (AMERICA) LLC as agent for the Carrier

By _____

(Continued on reverse side)

SHIPPER/EXPORTER (2)
MARINE TRANSPORT LOGISTICS INC
63 NEW HOOK ROAD
BAYONNE NJ
07002 UNITED STATES

DOCUMENT NO (5)
NAM3489486
EXPORT REFERENCES (6)
SHIPPER REFERENCE: EQ-57391

NAM3489486

CONSIGNEE (3) (NOT NEGOTIABLE UNLESS CONSIGNED TO ORDER)
DOGAL SHIPPING AGENCIES CO
ABDUL NASSER STREET,
COMMERCIAL COMPLEX, OFFICE 303,
TEL: 218619096148,
BENGHAZI, LIBYA

FORWARDING AGENT - REFERENCES (7)

CHB:
FMC:

NOTIFY (4)
DOGAL SHIPPING AGENCIES CO
ABDUL NASSER STREET,
COMMERCIAL COMPLEX, OFFICE 303,
TEL: 218619096148,
BENGHAZI, LIBYA

POINT AND COUNTRY OF ORIGIN (8)

DOMESTIC ROUTING/EXPORT INSTRUCTIONS (9)

NO SED REQUIRED - X20190516035018

PIER/TERMINAL (10)

COMBINED TRANSPORT*
PRECARRIAGE FROM (10A)

BARBOURS CUT TERMINAL

VESSEL (11)
SANTA VIOLA
0GY3CE1MA

PORT OF LOADING (12)
HOUSTON, TX, UNITED STATES

PORT OF DISCHARGE FROM VESSEL (13) FOR TRANSHIPMENT TO (14)
BINGAZI

COMBINED TRANSPORT - ONWARD CARRIAGE (15)*

CARRIER'S RECEIPT		PARTICULARS FURNISHED BY SHIPPER - CARRIER NOT RESPONSIBLE		
MARKS AND NUMBERS (16)	NO. of PKGS. (17)	DESCRIPTION OF GOODS (18) SHIPPER'S STOW LOAD AND COUNT	GROSS WEIGHT (19)	MEASUREMENT (20)
1x40HC CONTAINER:				
CMAU5142403 SN# BM-928799	3	VEHICLES	6611.560KGS	
		2005 TOYOTA SEQUOIA LIMITED - 2,267.96 KG		
		VIN:5TDZT38A35S250866		
		2001 TOYOTA TUNDRA SR5 - 1,939.56 KG		
		VIN:5TBRT34161S192745		
		1989 DODGE RAMCHARGER S - 2,404.04 KG		
		VIN:3B4GE07Y4KM937815		
		HS CODE: 8703230190		
BATTERIES DISCONNECTED, FUEL TANK(S) DRAINED				
HS CODE: 8703230190				
		TOTAL	6611.560KGS	
S/C # 18-1782		DRAFT		

S/C # 18-1782

FREIGHT PREPAID

DRAFT

SHIPPER'S STOW, LOAD AND COUNT / F C I

CARGO AT PORT IS AT RECEIVER RISK, EXPENSES AND RESPONSIBILITY
FREE OUT

AS PER LIBYAN DECREE NO 17 : NO DETENTION CHARGES ARE PAYABLE IF CONSIGNEES RETURN THE CONTAINER WITHIN TEN DAYS AFTER DAY OF BERTHING OF VESSEL. RETURN LATER THAN TEN DAYS WILL BE SUBJECT TO A DETENTION CHARGE OF USD 5/20FT OR USD 8/40FT PER DAY FROM 11th UNTIL 30th DAY AND USD 6/20FT OR USD 12/40FT PER DAY AS FROM 31ST DAY. ALL CARGO EXPENSES INCLUDING RELOADING OF EMPTY EQUIPMENT ARE FOR RECEIVERS ACCOUNT. UNLESS THE VALUE OF CARGO IS DECLARED ON THE FACE OF THIS BILL OF LADING OR WAYBILL IN THE CONDITIONS SET FOR

SHIPPER'S DECLARED VALUE

SUBJECT TO EXTRA FREIGHT AS PER TARIFF AND CLAUSE 10 OF THIS B/L

If above commodities, technology, or software were exported from the U.S., the Export Administration Regulations must be complied by the Merchant. Diversions contrary to U.S. law prohibited.

*If the Pre-Carriage or Onward Carriage boxes are filled out, shipment will be treated as Through Combined Transport. Carrier undertakes entire transport from the place where the goods are taken in charge to the place designated for their delivery and assumes full liability for such transport as per clause 15.

RECEIVED in external good order and condition, except as otherwise indicated herein, the number of packages listed in the Carriers Receipt, said to contain the goods described in the Particulars Furnished by Shipper (contents, weight and measurement unknown to Carrier) to be transported to the port of discharge, or to such other place authorized or permitted herein, or so near thereto as the vessel can get, lie and leave, always in safety and without delay, and there to be delivered to consignee, or authorized receiver, or on carrier on payment of all charges due thereon.

All claims and actions arising between the Carrier and the Merchant in relation with the contract of Carriage evidenced by this Bill of Lading shall exclusively be brought before the Tribunal de Commerce de Marseille and no other Court shall have jurisdiction with regards to any such claim or action. Notwithstanding the above, the Carrier is also entitled to bring the claim or action before the Court of the place where the defendant has his registered office.

IN WITNESS WHEREOF THREE (3)

Bills of Lading all of like tenor, have been executed, ONE of which being accomplished, the other shall stand void.

DAY MONTH YEAR

BL/No.
CMDU

25-MAY-19

NAM3489486

Signed for the Carrier CMA CGM SA by
CMA CGM (AMERICA) LLC as agent for the Carrier

By

(Continued on reverse side)

SHIPPER/EXPORTER (2)
MARINE TRANSPORT LOGISTICS INC
63 NEW HOOK ROAD
BAYONNE NJ
07002 UNITED STATES

DOCUMENT NO (5)
NAM3489486
EXPORT REFERENCES (6)
SHIPPER REFERENCE: EO-57391

NAM3489486

CONSIGNEE (3) (NOT NEGOTIABLE UNLESS CONSIGNED TO ORDER)

FORWARDING AGENT - REFERENCES (7)

DOGAL SHIPPING AGENCIES CO
ABDUL NASSER STREET,
COMMERCIAL COMPLEX, OFFICE 303,
TEL: 218619096148,
BENGHAZI, LIBYA

CHB:
FMC:

NOTIFY (4)

DOGAL SHIPPING AGENCIES CO
ABDUL NASSER STREET,
COMMERCIAL COMPLEX, OFFICE 303,
TEL: 218619096148,
BENGHAZI, LIBYA

POINT AND COUNTRY OF ORIGIN (8)

DOMESTIC ROUTING/EXPORT INSTRUCTIONS (9)

NO SED REQUIRED - X20190516035018

PIER/TERMINAL (10)

COMBINED TRANSPORT*
PRECARRIAGE FROM (10A)

BARBOURS CUT TERMINAL

VESSEL (11)

PORT OF LOADING (12)

SANTA VIOLA
0GY3CE1MA

HOUSTON, TX, UNITED STATES

PORT OF DISCHARGE FROM VESSEL (13) FOR TRANSHIPMENT TO (14)

COMBINED TRANSPORT - ONWARD CARRIAGE (15)*

BINGAZI

CARRIER'S RECEIPT

MARKS AND NUMBERS (16) NO. of PKGS. (17)

PARTICULARS FURNISHED BY SHIPPER - CARRIER NOT RESPONSIBLE

DESCRIPTION OF GOODS (18)
SHIPPERS STOW LOAD AND COUNT

GROSS WEIGHT (19)

MEASUREMENT (20)

ON THE REVERSE, LIMITATION OF LIABILITY IN RESPECT OF LOSS OR DAMAGE TO GOODS SHALL NOT EXCEED USD 500.00 PER PACKAGE, OR CUSTOMARY FREIGHT UNIT IF GOODS ARE NOT SHIPPED IN PACKAGE.
FOR THE PURPOSE OF THE PRESENT CARRIAGE, CLAUSE 16(2) SHALL EXCLUDE THE APPLICATION OF THE YORK/ANTWERP RULES, 2004.

MIS-DECLARATION OF CARGO WEIGHT ENDANGERS CREW, PORT WORKERS AND VESSELS' SAFETY. YOUR CARGO MAY BE WEIGHED AT ANY PLACE AND TIME OF CARRIAGE AND ANY MIS-DECLARATION WILL EXPOSE YOU TO CLAIMS FOR ALL LOSSES, EXPENSES OR DAMAGES WHATSOEVER RESULTING THEREOF AND BE SUBJECT TO FREIGHT SURCHARGE.

The Shipper acknowledges that the Carrier may carry the Goods identified in this Bill of Lading on the deck of any vessel and in taking remittance of this Bill of Lading the Merchant (including the Shipper, the Consignee and the Holder of the Bill of Lading, as the case may be) confirms his express acceptance of all the terms and conditions of this Bill of Lading and expressly confirms his unconditional and irrevocable consent to the possible carriage of the Goods on the deck of any vessel.

By tendering the hazardous goods for carriage, Merchant guarantees the accuracy of the description of the goods and undertakes to warn the consignee, the notify party, and all its sub-contractors on the transport, storage and handling prescriptions referred to in the IMDG Code and the Material Safety Data Sheet. Merchant's particular attention is drawn on clause 10 of this bill of lading.

SHIPPER'S DECLARED VALUE

SUBJECT TO EXTRA FREIGHT AS PER TARIFF AND CLAUSE 10 OF THIS B/L

If above commodities, technology, or software were exported from the U.S., the Export Administration Regulations must be complied by the Merchant. Diversions contrary to U.S. law prohibited.

*If the Pre-Carriage or Onward Carriage boxes are filled out, shipment will be treated as Through Combined Transport. Carrier undertakes entire transport from the place where the goods are taken in charge to the place designated for their delivery and assumes full liability for such transport as per clause 15.

RECEIVED in external good order and condition, except as otherwise indicated herein, the number of packages listed in the Carriers Receipt, said to contain the goods described in the Particulars Furnished by Shipper (contents, weight and measurement unknown to Carrier) to be transported to the port of discharge, or to such other place authorized or permitted herein, or so near thereto as the vessel can get, lie and leave, always in safety and without delay, and there to be delivered to consignee, or authorized receiver, or on carrier on payment of all charges due thereon.

All claims and actions arising between the Carrier and the Merchant in relation with the contract of Carriage evidenced by this Bill of Lading shall exclusively be brought before the Tribunal de Commerce de Marseille and no other Court shall have jurisdiction with regards to any such claim or action. Notwithstanding the above, the Carrier is also entitled to bring the claim or action before the Court of the place where the defendant has his registered office.

IN WITNESS WHEREOF THREE (3)

Bills of Lading all of like tenor, have been executed, ONE of which being accomplished, the other shall stand void.

DAY MONTH YEAR

BL/No.
CMDU

25-MAY-19

NAM3489486

Signed for the Carrier CMA CGM SA by
CMA CGM (AMERICA) LLC as agent for the Carrier

By _____

(Continued on reverse side)

Carrier: Hapag-Lloyd Aktiengesellschaft, Hamburg

Bill of Lading

Multimodal Transport or Port to Port Shipment

Shipper:

MARINE TRANSPORT LOGISTICS INC
63 NEW HOOK ROAD
BAYONNE NJ
07002 UNITED STATES



Carrier's Reference: B/L-No.:

Page:

69674125 HLCUBSC1904AROH5 2 / 5

Export References:

EO-56659

Consignee (not negotiable unless consigned to order):

DOGA SHIPPING AGENCIES CO
ABDUL NASSER STREET,
COMMERCIAL COMPLEX, OFFICE 303,
TEL: 218619096148,
BENGHAZI. LIBYA

Forwarding Agent:

Notify Address (Carrier not responsible for failure to notify, see clause 20 (1) hereof):

Consignee's Reference:

Place of Receipt:

Vessel(s):

Voyage-No.:

OAKLAND EXPRESS

09E15

Place of Delivery:

Port of Loading:

LONG BEACH, CA

Port of Discharge:

BINGAZI

Container Nos., Seal Nos., Marks and Nos. Number and Kind of Packages, Description of Goods

Gross Weight:

Measurement:

AES-ITN: X20190405790370

AES-ITN: X20190405790745

AES-ITN: X20190405792383

Shipper's declared Value [see clause 7(2) and 7(3)]

Total No. of Containers received by the Carrier: Packages received by the Carrier:

1

Movement:

Currency:

FCL/FCL

USD

Charge Rate Basis Wt/Vol/Val P/C Amount

Above Particulars as declared by Shipper. Without responsibility or warranty as to correctness by Carrier [see clause 11]

DRAFT

RECEIVED by the Carrier from the Shipper in apparent good order and condition (unless otherwise noted herein) the total number or quantity of Containers or other packages or units indicated in the box opposite entitled "Total No. of Containers/Packages received by the Carrier" for Carriage subject to all the terms and conditions hereof (INCLUDING THE TERMS AND CONDITIONS ON THE REVERSE HEREOF AND THE TERMS AND CONDITIONS OF THE CARRIER'S APPLICABLE TARIFF) from the Place of Receipt or the Port of Loading, whichever is applicable, to the Port of Discharge or the Place of Delivery, whichever is applicable. One Original Bill of Lading, duly endorsed, must be surrendered by the Merchant to the Carrier in exchange for the Goods or a delivery order. In accepting this Bill of Lading the Merchant expressly accepts and agrees to all its terms and conditions whether printed, stamped or written, or otherwise incorporated, notwithstanding the non-signing of this Bill of Lading by the Merchant.

IN WITNESS WHEREOF the number of original Bills of Lading stated below all of this tenor and date has been signed, one of which being accomplished the others to stand void.

Place and date of issue:

PEACHTREE CORNERS APR/13/2019

Freight payable at:

Number of original Bs/L:

1

FOR ABOVE NAMED CARRIER
HAPAG-LLOYD (AMERICA) LLC(AS AGENT)

Total Freight Prepaid	Total Freight Collect	Total Freight
2100.00		2100.00

Ballindamm 25 - D-20095 Hamburg VAI-ID-No: DE813960018

MTD17312 (FB, ...)

Page 3 / 5

B/L-No. HLCUBSC1904AROH5

Cont/Seals/Marks	Packages/Description of Goods	Weight	Measure
HAMU 1298091	1 CONT. 40'X9'6" HIGH CUBE CONT. SLAC*		
SEALS :	4 VEHICLES	6702.190	
14928515	2000 JEEP GRAND CHEROKEE LIMITED -	KGS	
3698	1,825.26 KG		
	VIN:1J4GW58N5YC297698		
	1984 MERCEDES-BENZ 380 380SL - 1,		
	514.00 KG		
	VIN:WDBBA45A5EA013812		
	2007 KIA RONDO EX; LX - 1,561.72 KG		
	VIN:KNAFG526777112443		
	2012 HYUNDAI GENESIS BASE - 1,		
	801.22 KG		
	VIN:KMHGC4DD8CU192433		
	HS CODE: 8703230190		
	BATTERIES DISCONNECTED, FUEL		
	TANK(S) DRAINED		

*SLAC = Shipper's Load, Stow, Weight and Count

SHIPPED ON BOARD, DATE : APR/13/2019

PORT OF LOADING: LONG BEACH, CA

VESSEL NAME: OAKLAND EXPRESS VOYAGE: 09E15

 Cont/Seals/Marks Packages/Description of Goods Weight Measure

FREE OUT (UNSTOWED)
 ALL EXPENSES IN DISCHARGING PORT INCLUDING RE-LOADING OF EMPTY
 CONTAINER(S) TO BE PAID BY RECEIVERS BEFORE RELEASE OF CARGO,
 INCLUDING LASHING AND UNLASHING.

DEMURRAGE CLAUSE

- ALL CONTAINER TYPE (EXCL. REEFER)
 FIRST 10 DAYS (SSHINC) * FREE
 FROM THE 11TH UP TILL THE 24TH DAY (SSHINC) * USD 10.-- PER 20 FEET/DAY
 USD 20.-- PER 40 FEET/DAY
 FROM THE 25ST AND OVER (SSHINC) * USD 20.-- PER 20 FEET/DAY
 USD 40.-- PER 40 FEET/DAY

SPECIALS (NOT REEFER) TO ADD 100 PCT ON GENERALS

- REEFER
 FIRST 3 DAYS (SSHINC) * FREE
 FROM THE 4TH UP TILL THE 24TH DAY (SSHINC) * USD 60.-- PER 20 FEET/DAY
 USD 100.-- PER 40 FEET/DAY
 FROM THE 25TH AND OVER (SSHINC) * USD 100.-- PER 20 FEET/DAY
 USD 150.-- PER 40 FEET/DAY

*) SSHINC = SATURDAYS, SUNDAYS RESP. WEEKEND RESTDAYS AND OFFICIAL
 HOLIDAYS INCLUDED.

DEMURRAGE PERIOD TO COUNT FROM 00.01 A.M. OF THE DAY OF CONTAINER(S)
 DISCHARGE FROM VESSEL UNTIL THE DAY ON WHICH THE CONTAINER(S)
 ARE BEING RETURNED EMPTY TO CARRIER'S TERMINAL.

STORAGE TO BE SETTLED BY RECEIVER DIRECTLY WITH LOCAL AUTHORITIES
 AS PER COUNTRY REGULATIONS.

FOR REEFER CARGO :
 RECEIVERS TO SUPPORT ALL BORNED EXPENCES AND PREJUDICES IF ANY CAUSED
 CARGO PLUS CONTAINER DEMURRAGES AND DAMAGES CASE CARGO HAVE NOT BEEN
 WITHDRAWN IN TIME AS PER REGULATIONS AND IMMEDIATLY AFTER DISCHARGE.

REEFER PLUG-IN, MONITORING AND ELECTRICITY COSTS TO BE SETTLED BY
 RECEIVER DIRECTLY WITH LOCAL AUTHORITIES AS PER COUNTRY REGULATIONS.

HAPAG-LLOYD AG AND HIS AGENT ARE ENTITLED TO COLLECT DETENTION AND IT
 MUST BE PAID IN USD TO NOMINEE ACCOUNT AS PER HAPAG-LLOYD AG OR HIS
 AGENT'S INSTRUCTION.

Page 5 / 5

B/L-No. HLCUBSC1904AROH5

Cont/Seals/Marks Packages/Description of Goods Weight Measure

FREIGHT PREPAID

THESE COMMODITIES MAY BE CONTROLLED BY THE U.S. GOVERNMENT AND AUTHORIZED FOR EXPORT ONLY TO THE COUNTRY OF ULTIMATE DESTINATION FOR USE BY THE ULTIMATE CONSIGNEE OR END-USER(S) HEREIN IDENTIFIED. THEY MAY NOT BE RESOLD, TRANSFERRED, OR OTHERWISE DISPOSED OF TO ANY OTHER COUNTRY OR TO ANY PERSON OTHER THAN THE AUTHORIZED ULTIMATE CONSIGNEE OR END-USER(S), EITHER IN ORIGINAL FORM OR AFTER BEING INCORPORATED INTO OTHER ITEMS, WITHOUT FIRST OBTAINING APPROVAL FROM THE U.S. GOVERNMENT OR AS OTHERWISE AUTHORIZED BY U.S. LAW AND REGULATIONS.

' BATTERY CABLES DISCONNECTED, FUEL TANKS DRAINED
AND ENGINES RUN UNTIL STALLED '

SERVICE CONTRACT NUMBER: S19NNE018

CHARGE	RATE BASIS	W/M/V	CURR	PREPAID	COLLECT
MARINEFUEL RECOVER	446.00 CTR	1	USD	446.00	
LUMPSUM			USD	1654.00	

Carrier: Hapag-Lloyd Aktiengesellschaft, Hamburg

Bill of Lading

Multimodal Transport or Port to Port Shipment

Shipper:

MARINE TRANSPORT LOGISTICS INC
63 NEW HOOK ROAD
BAYONNE NJ
07002 UNITED STATES



Carrier's Reference:

B/L-No.:

Page:

68339213

HLCUBSC1903BCVU2

2 / 5

Export References:

EO-56169

Consignee (not negotiable unless consigned to order):

DOGAL SHIPPING AGENCIES CO
ABDUL NASSER STREET,
COMMERCIAL COMPLEX, OFFICE 303,
TEL: 218619096148,
BENGHAZI. LIBYA

Forwarding Agent:

Notify Address (Carrier not responsible for failure to notify, see clause 20 (1) herof):

Consignee's Reference:

Place of Receipt:

Vessel(s):

Voyage-No.:

KOBE EXPRESS

10E11

Place of Delivery:

Port of Loading:

LONG BEACH, CA, UNITED STATES

Port of Discharge:

BINGAZI

Container Nos., Seal Nos., Marks and Nos. Number and Kind of Packages, Description of Goods

Gross Weight:

Measurement:

AES-ITN: X20190314487898

AES-ITN: X20190314488106

TCLU 8072330

SEALS :

4568

1 CONT. 40'X9'6" HIGH CUBE CONT. SLAC*

1 VEHICLES

1231.050

2014 KIA SOUL BASE

KGS

VIN:KNDJN2A24E7044941

1 VEHICLES

1466.010

2014 HYUNDAI TUCSON GLS

KGS

VIN:KM8JT3AF6EU872601

1 VEHICLES

2299.710

2004 TOYOTA SEQUOIA SR5

KGS

VIN:5TDZT34A14S210466

Shipper's declared Value [see clause 7(2) and 7(3)]

Total No. of Containers received by the Carrier: Packages received by the Carrier:

1

Movement:

Currency:

FCL/FCL

USD

Charge Rate

Basis

Wt/Vol/Vol

P/C

Amount

Above Particulars as declared by Shipper. Without responsibility or warranty as to correctness by Carrier [see clause 11]

DRAFT

RECEIVED by the Carrier from the Shipper in apparent good order and condition (unless otherwise noted herein) the total number or quantity of Containers or other packages or units indicated in the box opposite entitled "Total No. of Containers/Packages received by the Carrier" for Carriage subject to all the terms and conditions herof (INCLUDING THE TERMS AND CONDITIONS ON THE REVERSE HEREOF AND THE TERMS AND CONDITIONS OF THE CARRIER'S APPLICABLE TARIFF) from the Place of Receipt or the Port of Loading, whichever is applicable, to the Port of Discharge or the Place of Delivery, whichever is applicable. One original Bill of Lading, duly endorsed, must be surrendered by the Merchant to the Carrier in exchange for the Goods or a delivery order. In accepting this Bill of Lading the Merchant expressly accepts and agrees to all its terms and conditions whether printed, stamped or written, or otherwise incorporated, notwithstanding the non-signing of this Bill of Lading by the Merchant.

IN WITNESS WHEREOF the number of original Bills of Lading stated below all of this tenor and data has been signed, one of which being accomplished the others to stand void.

Place and date of issue:

PEACHTREE CORNERS MAR/23/2019

Freight payable at:

Number of original Bs/L:

1

FOR ABOVE NAMED CARRIER

HAPAG-LLOYD (AMERICA) LLC(AS AGENT)

Total Freight Prepaid

Total Freight Collect

Total Freight

1876.00

1876.00

Ballindamm 25 - D-20095 Hamburg VAT-ID-No: DE813960018

MTD17312 (FB...)



BILL OF LADING FOR COMBINED TRANSPORT AND PORT TO PORT SHIPMENT WAYBILL

Sheet 1 of 2

SHIPPER/EXPORTER (2)
MARINE TRANSPORT LOGISTICS INC
63 NEW HOOK ROAD
BAYONNE NJ
07002 UNITED STATES

DOCUMENT NO (5)
NAM3452293
EXPORT REFERENCES (6)
SHIPPER REFERENCE: EO-55991

CONSIGNEE (3) (NOT NEGOTIABLE UNLESS CONSIGNED TO ORDER)
DOGAL SHIPPING AGENCIES CO
ABDUL NASSER STREET,
COMMERCIAL COMPLEX, OFFICE 303,
TEL: 218619096148,
BENGHAZI, LIBYA

FORWARDING AGENT - REFERENCES (7)

CHB:
FMC:

NOTIFY (4)
DOGAL SHIPPING AGENCIES CO
ABDUL NASSER STREET,
COMMERCIAL COMPLEX, OFFICE 303,
TEL: 218619096148,
BENGHAZI, LIBYA

POINT AND COUNTRY OF ORIGIN (8)

DOMESTIC ROUTING/EXPORT INSTRUCTIONS (9)
NO SED REQUIRED - X20190329400659

PIER/TERMINAL (10)

COMBINED TRANSPORT
PRECARRIAGE FROM (10A)

BARBOURS CUT TERMINAL

VESSEL (11)
ALLEGORIA
OGY2YE1MA

PORT OF LOADING (12)
HOUSTON, TX

PORT OF DISCHARGE FROM VESSEL (13) FOR TRANSHIPMENT TO (14)
BINGAZI

COMBINED TRANSPORT - ONWARD CARRIAGE (15)*

CARRIER'S RECEIPT		PARTICULARS FURNISHED BY SHIPPER - CARRIER NOT RESPONSIBLE		
MARKS AND NUMBERS (16)	NO. of PKGS. (17)	DESCRIPTION OF GOODS (18) SHIPPER'S STOW LOAD AND COUNT	GROSS WEIGHT (19)	MEASUREMENT (20)
		1x40HC CONTAINER:		
TCNU5677854 SN# 0616175	4	VEHICLES	5933.900KGS	
		2014 KIA FORTE EX; LX - 1,259.17 KG		
		VIN:KNAFX4A66E5092674		
		2008 HYUNDAI ELANTRA GLS; LIMITED; SE		
		- 1,313.15 KG		
		VIN:KMHU46D38U483698		
		1998 TOYOTA 4RUNNER SR5 - 1,617.06 KG		
		VIN:JT3GN86R8W0066720		
		2009 HYUNDAI SANTA FE LIMITED; SE - 1,744.52 KG		
		VIN:5NMSH13E79H254543		
HS CODE: 8703230190				
		BATTERIES DISCONNECTED, FUEL TANK(S) DRAINED		
		TOTAL	5933.900KGS	
	4			
S/C # 18-1782				

S/C # 18-1782

Shipped on Board ALLEGORIA 09-APR-2019 CMA CGM
(America) LLC As agents for the Carrier

SHIPPER'S DECLARED VALUE
SUBJECT TO EXTRA FREIGHT AS PER TARIFF AND CLAUSE 10 OF THIS B/L

If above commodities, technology, or software were exported from the U.S., the Export Administration Regulations must be complied by the Merchant. Diversions contrary to U.S. law prohibited.

*If the Pre-Carriage or Onward Carriage boxes are filled out, shipment will be treated as Through Combined Transport. Carrier undertakes entire transport from the place where the goods are taken in charge to the place designated for their delivery and assumes full liability for such transport as per clause 15.

RECEIVED in external good order and condition, except as otherwise indicated herein, the number of packages listed in the Carriers Receipt, said to contain the goods described in the Particulars Furnished by Shipper (contents, weight and measurement unknown to Carrier) to be transported to the port of discharge, or to such other place authorized or permitted herein, or so near thereto as the vessel can get, lie and leave, always in safety and without delay, and there to be delivered to consignee, or authorized receiver, or on carrier on payment of all charges due thereon.

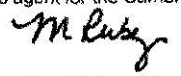
All claims and actions arising between the Carrier and the Merchant in relation with the contract of Carriage evidenced by this Waybill shall exclusively be brought before the Tribunal de Commerce de Marseille and no other Court shall have jurisdiction with regards to any such claim or action. Notwithstanding the above, the Carrier is also entitled to bring the claim or action before the Court of the place where the defendant has his registered office.

IN WITNESS WHEREOF ZERO

Bills of Lading all of like tenor, have been executed, ONE of which being accomplished, the other shall stand void.

DAY MONTH YEAR
09-APR-19
Signed for the Carrier CMA CGM SA by
CMA CGM (AMERICA) LLC as agent for the Carrier

BL/No.
CMDU
NAM3452293

By 

(Continued on reverse side)

Dear customer, please note that changes to payment terms or prepaid payer after an invoice has been made available will be subject to a payer amendment fee starting from the 1st of May 2019

 MAERSK LINE		NON-NEGOTIABLE WAYBILL	SCAC MAEU B/L No. 968777507
Shipper MARINE TRANSPORT LOGISTIC INC 63 NEW HOOK RD, TEL: 201-858-8600, BAYONNE, NJ 07002, USA		Booking No. 968777507	
Consignee DOGAL SHIPPING AGENCIES CO ABDUL NASSER STREET, COMMERCIAL COMPLEX, OFFICE 303, Tel: 218619096148, Benghazi, LIBYA		Export reference 26370241	
Notify Party (see clause 22)		This contract is subject to the terms, conditions and exceptions, including the law & jurisdiction clause and limitation of liability & declared value clauses, of the current Maersk Line Bill of Lading (available from the Carrier, its agents and at terms.maerskline.com/cargo), which are applicable with logical amendments (mutatis mutandis). To the extent necessary to enable the Consignee to sue and to be sued under this contract, the Shipper on entering into this contract does so on his own behalf and as agent for and on behalf of the Consignee and warrants that he has the authority to do so. The shipper shall be entitled to change the Consignee at any time before delivery of the goods provided he gives the Carrier reasonable notice in writing. Delivery will be made to the Consignee or his authorised agent on production of reasonable proof of identity (and, in the case of an agent, reasonable proof of authority) without production of this waybill. The Carrier shall be under no liability whatsoever for misdelivery unless caused by the Carrier's negligence. Onward inland routing (Not part of Carriage as defined in clause 1. For account and risk of Merchant)	
Vessel MSC SILVANA	Voyage No. 917F	Place of Receipt: Applicable only when document used as Multimodal Waybill	
Port of Loading Savannah	Port of Discharge Benghazi	Place of Delivery: Applicable only when document used as Multimodal Transport B/L (see clause 1)	

PARTICULARS FURNISHED BY SHIPPER

Kind of Packages, Description of goods, Marks and Numbers: Container No./Seal No. SHIPPED ON BOARD MSC SILVANA \ 917E ON AT Savannah 1 Container Said to Contain 4 VEHICLES Kia SPORTAGE EX; LX - 1,519.99 Kg VIN:KNDJF723X97628462 1994 JEEP GRAND CHEROKEE LAREDO - 1,521.14 Kg VIN:1J4GZ58SXRC230965 HYUNDAI ACCENT GS - 1,135.80 Kg VIN:KMHC36C19U126955 Hyundai ACCENT GLS - 1,154.85 Kg VIN:KMHCU4AE0EU740243 AES ITN:X20190422664194 HS Code: 8703230190 Batteries Disconnected, Fuel Tank(s) Drained CLHU8908547 40 DRY 9'6 4 VEHICLES 5431.770 KGS Below freight details will not be part of Original Bill of Lading unless requested by customer Above particulars as declared by Shipper, but without responsibility of or representation by Carrier.	Weight 5431.770 KGS	Measurement
--	-------------------------------	-------------

Freight & Charges	Rate	Unit	Currency	Prepaid	Collect						
<table border="1"> <tr> <td> Charges Name Basic Ocean Freight </td> <td> Prepaid/Collect Prepaid </td> <td> Invoice Party MARINE TRANSPORT LOGISTIC </td> <td> Customer Code 33100164831 </td> <td colspan="2"> Collection Business Unit Maersk Agency U.S.A., Inc - Charlotte </td> </tr> </table>						Charges Name Basic Ocean Freight	Prepaid/Collect Prepaid	Invoice Party MARINE TRANSPORT LOGISTIC	Customer Code 33100164831	Collection Business Unit Maersk Agency U.S.A., Inc - Charlotte	
Charges Name Basic Ocean Freight	Prepaid/Collect Prepaid	Invoice Party MARINE TRANSPORT LOGISTIC	Customer Code 33100164831	Collection Business Unit Maersk Agency U.S.A., Inc - Charlotte							
Carrier's Receipt: Total number of containers or packages received by Carrier 1 container		Place of Issue of Waybill Chennai		Shipped, as far as ascertained by reasonable means of checking, in apparent good order and condition, unless otherwise stated herein the total number or quantity of Containers or other packages or units indicated in the box opposite entitled "Carrier's Receipt"							
Shipped on Board Date (Local Time)		Date Issue of Waybill									
Declared Value Charges (see clause 7.3 of the Maersk Line Bill of Lading) for Declared Value of US\$											
Forwarder											
Signed for the Carrier Maersk Line A/S											
Maersk Line India Pvt Ltd As Agent(s)											

This transport document has one or more numbered pages

To amend these documents, around the clock, log in to your account here: <https://www.maersk.com/shipmentoverview/documentation/verify>

Carrier: Hapag-Lloyd Aktiengesellschaft, Hamburg

Bill of Lading

Multimodal Transport or Port to Port Shipment

Shipper:

MARINE TRANSPORT LOGISTICS INC
63 NEW HOOK ROAD
BAYONNE NJ
07002 UNITED STATES



Carrier's Reference: B/L-No.:

64338457

HLCUBSC1903BKVS2

Page:

2 / 4

Export References:

EO-56283

Consignee (not negotiable unless consigned to order):

DOGAL SHIPPING AGENCIES CO
ABDUL NASSER STREET,
COMMERCIAL COMPLEX, OFFICE 303,
TEL: 218619096148,
BENGHAZI. LIBYA

Forwarding Agent:

Notify Address (Carrier not responsible for failure to notify; see clause 20 (1) hereof):

Consignee's Reference:

Place of Receipt:

Vessel(s):

OOCL EUROPE

Voyage-No.:

160E

Place of Delivery:

Port of Loading:

NEW YORK, NY, UNITED STATES

Port of Discharge:

BINGAZI

Container Nos., Seal Nos., Marks and Nos. Number and Kind of Packages, Description of Goods

AES-ITN: X20190314524583

Gross Weight:

Measurement:

TCLU 5094870

SEAL:

9114692

1 CONT. 40'X9'6" HIGH CUBE CONT. SLAC*

4 VEHICLES

6341.220

1997 JEEP CHEROKEE SPORT - 1,406.14

KGS

KG

VIN:1J4FJ68SXVL611640

2006 DODGE GRAND CARAVAN SXT -

1,968.14 KG

VIN:2D4GP44L96R884379

2013 HYUNDAI SONATA GLS - 1,451.04

KG VIN:5NPEB4AC7DH588147

2001 INFINITI I30 BASE - 1,515.91

KG

VIN:JNKCA31A91T028798

HS CODE: 8703230190

*SLAC = Shipper's Load, Stow, Weight and Count

Shipper's declared Value [see clause 7(2) and 7(3)]

Above Particulars as declared by Shipper. Without responsibility or warranty as to correctness by Carrier [see clause 11]

DRAFT

Total No. of Containers received by the Carrier: Packages received by the Carrier:

1

Movement:

Currency:

FCL/FCL

USD

Charge

Rate

Basis

Wt/Vol/Val

P/C

Amount

RECEIVED by the Carrier from the Shipper in apparent good order and condition (unless otherwise noted herein) the total number or quantity of Containers or other packages or units indicated in the box opposite entitled "Total No. of Containers/Packages received by the Carrier" for Carriage subject to all the terms and conditions hereof (INCLUDING THE TERMS AND CONDITIONS ON THE REVERSE HEREOF AND THE TERMS AND CONDITIONS OF THE CARRIER'S APPLICABLE TARIFF) from the Place of Receipt or the Port of Loading, whichever is applicable, to the Port of Discharge or the Place of Delivery, whichever is applicable. One original Bill of Lading, duly endorsed, must be surrendered by the Merchant to the Carrier in exchange for the Goods or a delivery order. In accepting this Bill of Lading the Merchant expressly accepts and agrees to all its terms and conditions whether printed, stamped or written, or otherwise incorporated, notwithstanding the non-signing of this Bill of Lading by the Merchant.

IN WITNESS WHEREOF the number of original Bills of Lading stated below all of this tenor and date has been signed, one of which being accomplished the others to stand void.

Place and date of issue:

PEACHTREE CORNERS MAR/30/2019

Freight payable at:

Number of original B/L:

1

FOR ABOVE NAMED CARRIER
HAPAG-LLOYD (AMERICA) LLC(AS AGENT)

Total Freight Prepaid

Total Freight Collect

Total Freight

1452.00

1452.00

Ballindamm 25 - D-20095 Hamburg

VAT-ID-No: DE813960018

MTD17312 (F&B...)

Cont/Seals/Marks Packages/Description of Goods Weight Measure

THESE COMMODITIES MAY BE CONTROLLED BY THE U.S. GOVERNMENT AND AUTHORIZED FOR EXPORT ONLY TO THE COUNTRY OF ULTIMATE DESTINATION FOR USE BY THE ULTIMATE CONSIGNEE OR END-USER(S) HEREIN IDENTIFIED. THEY MAY NOT BE RESOLD, TRANSFERRED, OR OTHERWISE DISPOSED OF TO ANY OTHER COUNTRY OR TO ANY PERSON OTHER THAN THE AUTHORIZED ULTIMATE CONSIGNEE OR END-USER(S), EITHER IN ORIGINAL FORM OR AFTER BEING INCORPORATED INTO OTHER ITEMS, WITHOUT FIRST OBTAINING APPROVAL FROM THE U.S. GOVERNMENT OR AS OTHERWISE AUTHORIZED BY U.S. LAW AND REGULATIONS.

' BATTERY CABLES DISCONNECTED, FUEL TANKS DRAINED
AND ENGINES RUN UNTIL STALLED '

SERVICE CONTRACT NUMBER: S19NNE018

CHARGE	RATE BASIS	W/M/V	CURR	PREPAID	COLLECT
MARINEFUEL RECOVER	310.00 CTR	1	USD	310.00	
LUMPSUM			USD	1142.00	



MEDITERRANEAN SHIPPING COMPANY S.A.

Website: www.msc.com

SCAC Code: MSCU

BILL OF LADING No.

MEDUBK055078

NON-NEGOTIABLE COPY

"Port-to-Port" or "Combined Transport" (see Clause 1)

NO. & SEQUENCE OF ORIGINAL B/L's

NO. OF RIDER PAGES

0 of Zero

1

SHIPPER:

MARINE TRANSPORT LOGISTICS INC

63 NEW HOOK ROAD
BAYONNE NJ
07002 UNITED STATES

REF # EO-67398

FORWARDING AGENT:

CONSIGNEE: This B/L is not negotiable unless marked "To Order / To Order of..." here.

OGAL SHIPPING AGENCIES CO

ABDUL NASSER STREET
COMMERCIAL COMPLEX OFFICE 303,
TEL: 218619086148
BENGHAZI, LIBYA

CARRIER'S AGENTS ENDORSEMENTS: (Include Agent(s) at POD)

1. CONTAINER NUMBER: 21111111
 ALL TALLY CHARGES ARE FOR RECEIVERS ACCOUNT
 "FREE OUT"
 "ALL COSTS TO AND INCLUDING RETURN OF THE EMPTY CONTAINERS FOR RECEIVERS ACCOUNT"
 "TALLY CHARGES ARE FOR RECEIVERS ACCOUNT"
 "DEMERITAGE CLAUSE"
 "AS FOR DRY CONTAINERS"
 "AFTER A FREE TIME PERIOD OF 10 (TEN) DAYS FROM THE DATE OF UNLOADING FROM VESSEL, RECEIVERS ARE SUBJECT TO PAY DETENTION FEES AS PER LIBYAN
 DECREE IN V DATED 12/01/1997"
 CONTINUED IN THE DECLARATION SECTION



NOTIFY PARTIES: (No responsibility shall attach to the Carrier or to his Agent for failure to notify - see Clause 20)

OGAL SHIPPING AGENCIES CO

ABDUL NASSER STREET
COMMERCIAL COMPLEX OFFICE 303,
TEL: 218619086148
BENGHAZI, LIBYA

VESSEL & VOYAGE NO. (see Clauses 8 & 9)

MSC CHANNE - MC920R

PORT OF LOADING

LONG BEACH

PLACE OF RECEIPT: (Combined Transport ONLY - see Clauses 1 & 5.2)

XXXXXXXXXXXXXXXX

BOOKING REF

036SCT1168714

SERVICE CONTRACT NUMBER

18-0970TE

PORT OF DISCHARGE

BINGAZI

PLACE OF DELIVERY: (Combined Transport ONLY - see Clauses 1 & 5.2)

XXXXXXXXXXXXXXXX

PARTICULARS FURNISHED BY THE SHIPPER - NOT CHECKED BY CARRIER - CARRIER NOT RESPONSIBLE - See Clause 14

Container Numbers, Seal Numbers and Marks	Description of Packages and Goods (Continued on attached Bill of Lading Rider page(s), if applicable)	Gross Cargo Weight	Measurement
	PLEASE SEE ATTACHED RIDER PAGE(S) FOR DESCRIPTION OF PACKAGES AND GOODS continued from Carrier's Agent Endorsements By FOR REEFERS: "5 days free of cargo demurrage 6th day to the 29th day \$100/week/day 30th day onwards \$ 150/week/day" "Receivers undertake to preclear the reefers and collect same on Direct Delivery, any ship delays due to receivers' failure to preclear and collect Direct Delivery are at receivers' account". Plugging for the account of cargo receivers. FREE OUT ALL COSTS TO AND INCLUDING RETURNING THE EMPTY CONTAINER FOR RECEIVERS ACCOUNT.		

If above commodity is technology or software were exported from the USA, the export must be in accordance with the regulations set forth by the Merchant. Diversion contrary to US law is on driver.

FREIGHT & CHARGES: Cargo shall not be delivered unless Freight & charges are paid (see Clause 16).

RECEIVED by the Carrier in apparent good order and condition (unless otherwise stated herein) the total number or quantity of Containers or other packages or units indicated in the box entitled "Carrier's Receipt for cargo" subject to all the terms and conditions hereof from the Place of Receipt or Port of Loading to the Port of Discharge or Place of Delivery whichever is applicable IN ACCEPTING THIS BILL OF LADING THE MERCHANT EXPRESSLY ACCEPTS AND AGREES TO ALL THE TERMS AND CONDITIONS, WHETHER PRINTED, STAMPED OR OTHERWISE INCORPORATED ON THIS SIDE AND ON THE REVERSE SIDE OF THIS BILL OF LADING AND THE TERMS AND CONDITIONS OF THE CARRIER'S APPLICABLE TARIFF AS IF THEY WERE ALL SIGNED BY THE MERCHANT.

If this is a negotiable (To Order / to order) Bill of Lading, one original Bill of Lading, duly endorsed must be surrendered by the Merchant to the Carrier (together with outstanding Freight and charges) in exchange for the Goods or a Delivery Order. If this is a nonnegotiable (straight) Bill of Lading, the Carrier shall deliver the Goods or issue a Delivery Order (after payment of outstanding Freight and charges) against the surrender of one original Bill of Lading or in accordance with the national law at the Port of Discharge or Place of Delivery whichever is applicable.

IN WITNESS WHEREOF the Carrier or their Agent has signed the number of Bills of Lading stated at the top, all of this tenor and date and wherever one original Bill of Lading has been surrendered all other Bills of Lading shall be void.

DECLARED VALUE (only applicable if Ad Valorem Charges paid - see Clause 7.3)

XXXXXXXXXXXXXXXX

CARRIER'S RECEIPT (No. of Cntrs or Pkgs received by Carrier - see Clause 14.1)

1 cntr

SIGNED By MSC (USA) Inc. as Agent on behalf of the Carrier
MSC Mediterranean Shipping Company S.A

PLACE AND DATE OF ISSUE

CHICAGO -

SHIPPED ON BOARD DATE

EXHIBIT "5"

From: Mohamed Madkhour san.madkhour@cmayemen.com
Subject: Re: Need to pay for booking NAM2937907 [ref:_00D0Nk6PC_5000N1jLxln:ref]

Date: May 10, 2019 at 6:07 AM

To: Alla Solovyev alia@mtlworld.com

Cc: Speed speed7171@yahoo.com, Export CSV - NER usa.exportcsvner@usa.cma-cgm.com, usa.idlecargo@usa.cma-cgm.com, usa.cmaexportactive@usa.cma-cgm.com, usa.cmickelson@usa.cma-cgm.com, Hanna Tavalika support04@mtlworld.com, Garry Pogil garry.pogil@gmail.com, waleedforcars@gmail.com

Dear Alla

My below email is very clear the total \$25,000 for 5 containers already has reduced to \$5000 (\$500 per tue) and Cnees has already paid this amount and close this file so please proceed further with telex release and change of destination .

Dear colleagues in USA

Please take action to close this file by contact with Alla ASAP to proceed further with telex release and change of destination .

Best Regards

Mohammed MADKHOUR
As agents for CMA-CGM Yemen
ALHALAL SHIPPING CO. YEMEN LTD
Mob : (+967) 777 140 516
www.cma-cgm.com

On May 9, 2019, at 9:29 PM, Alla Solovyev <alia@mtlworld.com> wrote:

Please be aware that this customer is due to pay in total \$25,000 for 5 containers: 4 remain in Jeddah and 1 arrived to Aden.

The CMA CGM Jeddah and USA requires the full payment for all 5 containers, and these all containers are the subject of one

Case which was opened with FMC and handle with CMA attorney internally. The partial payment for one container is not Acceptable, and customer needs to take care of the full payment for all his containers. The customer is well aware of that, but playing games, and sending

All these emails daily to random people in all countries and continents. This is really ridicules.

Alla
Marine Transport Logistics Inc
63 New Hook Road
Bayonne, New Jersey 07002
Phone (201) 858-8600 Ext 116
Fax (201) 620-2101
www.MTLworld.com

Unless otherwise noted, all ocean freight quotations are valid for 30 days from the date of original quotation, subject to equipment availability, subject to any and all tariff additional valid at time of shipment.

Inland freight quotations are: subject to third party increases valid at time of shipment, subject to any fuel surcharges valid at time of shipment, subject to weight limitations and weight distribution requirements in accordance with the local and national rules and regulations of the country(ies) of transit, subject to availability of inland carrier at time of booking. Loading, lashing, securing, blocking and

EXHIBIT "6"

From: ARBONA Draughn - NOR usa.darbona@usa.cma-cgm.com @
Subject: RE: Marine Transport Logistics, Background materials
Date: October 17, 2018 at 2:13 PM
To: Garry Pogil garry.pogil@gmail.com
Cc: Jennifer M. Gartlan jgartlan@FMC.gov

Garry,

In reviewing the updated origin charges versus the charges I noted below I noticed a typo in the email I sent last night (Oct. 16) at 6:38PM EST: please note that the total demurrage charges at origin equal \$89,740. This amount is correctly reflected in the updated statement of account I provided earlier today.

As I mentioned during our discussion last week, it's extremely unfortunate for both parties that MTL allowed these containers to idle at a terminal that charges among the highest U.S. demurrage rates.

Regards,



Draughn ARBONA
Deputy General Counsel, N. America

Direct line: 1 (757) 961 - 2132
VOIP: 8108 2132
Mobile: 1 (504) 473 - 8652
5701 Lake Wright Drive
Norfolk Va, 23502
www.cma-cgm.com

From: ARBONA Draughn - NOR
Sent: Wednesday, October 17, 2018 1:58 PM
To: 'Garry Pogil' <garry.pogil@gmail.com>
Cc: Jennifer M. Gartlan <jgartlan@FMC.gov>
Subject: RE: Marine Transport Logistics, Background materials

Thanks, Garry.

I will discuss those options with our commercial team and get back to you.

Best regards,



Draughn ARBONA
Deputy General Counsel, N. America

Direct line: 1 (757) 961 - 2132
VOIP: 8108 2132
Mobile: 1 (504) 473 - 8652
5701 Lake Wright Drive
Norfolk Va, 23502
www.cma-cgm.com

From: Garry Pogil [<mailto:garry.pogil@gmail.com>]
Sent: Wednesday, October 17, 2018 1:57 PM
To: ARBONA Draughn - NOR <usa.darbona@usa.cma-cgm.com>
Cc: Jennifer M. Gartlan <jgartlan@FMC.gov>

EXHIBIT "7"

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Case No.: 18-07

MARINE TRANSPORT LOGISTICS, INC

Complainant,

vs.

CMA-CGM (America), LLC

Respondent

**FORMAL VERIFIED AMENDED
COMPLAINT**

Marine Transport Logistics, Inc., (hereinafter "MTL"), by its attorney, Garry Pogil,
complaining of the Respondent, CMA-CGM (America), LLC, (hereinafter "CMA") as follows:

PARTIES

1. MTL is a corporation duly organized under the laws of the State of New York, with a principal place of business at 63 New Hook Road, Bayonne, NJ 07002.
2. MTL is a Non-Vessel Operating Common Carrier (NVOCC), duly licensed by the Federal Maritime Commission (hereinafter "FMC"). Email: alla@mtlworld.com
3. CMA is a Vessel Operating Common Carrier (VOCC), located at One Meadowlands Plaza, Suite 201, East Rutherford, NJ 07073.

JURISDICTION

4. FMC has subject matter jurisdiction over the claims in this action as the above-captioned matter involves contracts for carriage of goods by sea. 46 U.S.C.S. 30701, and the Shipping Act of 1984, 46 U.S.C.S. 40101, et Seq.

FACTUAL ALLEGATIONS

5. Upon information and belief, the source of such being MTL, in or around December of 2017, CMA contracted with MTL for shipping the following containers from United States to Yemen: CMAU7430348, SEGU4981655, TCNU1194396, ECMU9385446, ECMU9889149, BEAU4065028, CMAU5454680, TCLU5063972, and GVCU5007582.

6. Upon information and belief, the source of such information being MTL, CMA was paid by MTL the full freight/shipping charges for all of the above-mentioned containers.

7. Containers CMAU7430348, SEGU4981655, TCNU1194396, ECMU9385446, ECMU9889149 and BEAU4065028 were never delivered to the contracted destination, namely the Port of Aden. Upon information and belief, the source of such information being conversions between MTL and CMA, such containers were never delivered to the contracted destination in Yemen, instead they ended up idling at the Port of Jeddah, because according to CMA, the authorities in Yemen would not accept such containers due to that country's political landscape.

8. On or about December 6, 2017, CMA e-mailed MTL stating that they will no longer accept bookings of all motor vehicles where the Port of Discharge was Aden in Yemen. Such email also contained an exception for existing bookings, which stated in part: "For existing bookings falling under the above restrictions where the container has been released to the shipper, but not received by CMA CGN, CMA CGN will allow a Change of Destination (COD) to any other Port of Discharge..." However, on or about November 17, 2017, CMA emailed MTL stating: "Please continue to book." Upon information and belief, the source of such information being CMA and MTL, CMA did not adhere to this policy and did not explain why some containers they were able to ship to Yemen as to other shippers and some they were not.

Upon information and belief, the source of such information being CMA documents and MTL, such arbitrary application of this policy continues to date.

9. On or about January 19, 2018, CMA e-mailed MTL stating that “We can resume service to Aden, but each bkg is subject to approval before being confirmed.” Additionally, same email stated: “Also, do to rising costs caused by the war, we need to raise our rate effective 2/1.” Upon information and belief, CMA never justified the manner in which CMA’s costs were raised by the war. Additionally, upon information and belief, if according to CMA, service to Aden was resumed, CMA never justified failure to timely ship and deliver the subject containers (CMAU5454680, TCLU5063972 and GVCU5007582) to the contracted destination at the Port of Aden after such containers were accepted at the terminal and were still at the terminal in New York. As a result of such, according to CMA, such containers began accumulating substantial demurrage and storage charges.

Furthermore, as to such containers, CMA began to reach out directly to MTL’s customer requesting payment for demurrage and detention and conveying the following information, that upon information and belief has not been verified, that such containers would be auctioned off by the authorities if such will remain in the port for longer than 3 months. MTL’s customers were compelled to pay the detention charges that CMA, upon information and belief, did not, and could not justify, in the amount of around \$17,000 USD.

10. On or about January 24, 2018, CMA e-mailed MTL stating: “As FYI, I’ve been informed Yemeni authorities are now instructing us to not accept autos. Seems they cannot make up their minds.”

11. On or about January 31, 2018, CMA e-mailed MTL stating: "Per our trade team, we stopped accepting all Automobiles to Yemen since November 2017."

12. Upon information and belief, the source of such information being MTL, with respect to the containers listed in paragraph 7 above, MTL agreed to change the destination and requested a waiver of any charges for storage and demurrage in the Port of Jeddah, and if no waiver were granted, then a list of all charges was requested. However, irrespective of such, CMA did not change the destination, did not cancel the charges, and CMA did not provide a full list of the charges.

13. Upon information and belief, the source of such being MTL, after the email referenced in paragraph 11 above, CMA has never communicated to MTL the need for a change in destination and allowed for the detention, demurrage and storage charges to accumulate without timely and adequate notice and explanation as to the calculation and nature of such.

14. As to the containers referenced in paragraph 7 above, CMA did what they have done to the containers referenced in paragraph 9 above, namely asserting random and unsubstantiated demurrage and storage charges. According to CMA's records, the full statement of demurrage charges, which do not include storage charges, just origin charges, to MTL are \$89,740. According to CMA representative's own admissions, with respect to the containers referenced in paragraph 7 (Jeddah containers), the amount due was \$5,000. Irrespective of such, CMA continued to detain MTL's containers until a payment of \$19,000 would be agreed upon after the matter was filed with FMC. Such payment of \$19,000 was agreed and a change of destination requested to Benghazi; however, CMA refused such, citing a purported manufacturing

restriction, even though CMA's own documents reveal that CMA has been shipping the exact same commodities at issue to Benghazi irrespective of the purported manufacturing restriction.

15. As to containers CMAU5454680 and TCLU5063972, upon information and belief, the source of such information being MTL, while CMA accepted such containers at the terminal, CMA never loaded such and kept such in New York, citing political instability in Yemen. However, upon information and belief, CMA did not load the containers on a ship that would have arrived in Yemen before the cited political conflict in that country. Upon information and belief, the source of such being conversations between CMA and MTL, CMA also cited missing consignee information as the reason for failing to load the containers, all of such was denied by MTL and is again alleged that CMA took such action to accumulate substantial demurrage charges that they attribute to MTL.

16. On or about May 9, 2019, CMA accepted a booking from MTL under #NAM3507788. MTL promptly submitted all required paperwork; however, irrespective of such, CMA falsely claimed that MTL did not submit the required paperwork, including a letter of indemnity, and that as a result of such, there would be additional charges, such as charges associated with shifting of containers. CMA refused to accept, and refused to acknowledge, proof of timely submitted documentation.

17. Upon information and belief, CMA failed to rectify the issues addressed in this complaint irrespective of MTL reaching out to CMA on multiple occasions.

FIRST CAUSE OF ACTION

(Violation of Section 41102(c) of the Shipping Act)

18. Complainant repeats paragraphs 1 to 17 above.

19. Respondent violated Section 41102(c) of the Shipping Act in that such respondent failed to establish, observe, and enforce just reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivery of property by failing to deliver the cargo to the contracted destination; by providing conflicting information as to the country conditions and customs regulations in Yemen, namely the Port of Aden; by failure to set up and observe just and reasonable rules and practices with respect to the assessment of demurrage, detention and storage charged; by failing to provide accurate and complete accounting of detention/demurrage/storage charges; by failing to change the port of destination in a manner that other similarly situated carriers have done, thus allowing an accumulation of demurrage and storage charges; by failing to timely load the cargo, specifically as to subject containers TCLU5063972 and CMAJ5454680, thus allowing an accumulation of demurrage and storage charges.

20. The above-alleged conduct by CMA was systematic and continuous, designed to bill an unreasonable and unsubstantiated amount of demurrage and storage charges and preventing the containers from being delivered to their final destination.

SECOND CAUSE OF ACTION

(Violation of Sections 41104(3) & 41104 (9) of the Shipping Act)

21. Complainant repeats paragraphs 1 to 20 above in alleging 41104(3) violations.

22. Respondent violated Section 41104 (9) of the Shipping Act in that, such Respondent imposed undue and unreasonable prejudice or disadvantage with respect to the Port of Aden by providing conflicting and vague information with respect to such Port's political landscape and customs regulations, causing Complainant to rely on such; by failing to ship and divert Complainant's cargo; by failing to honor the COD submitted by MTL when CMA honored the

same COD for other shippers; by causing MTL to sustain unreasonable demurrage/storage charges.

THIRD CAUSE OF ACTION

(Violation of Section 41104 (10) of the Shipping Act)

23. Complainant repeats paragraphs 1 to 22 above.

24. Respondent violated Section 41104 (10) of the Shipping Act in that, such Respondent unreasonably refused to deal or negotiate by failing to release the containers even though, upon information and belief, the freight for such was fully paid and MTL was negating in good faith as to the issue of detention/storage charges that continued to accrue for approximately eight 18 months and continues to date. Additionally, even when Respondent confirmed that it would resume service to the Port of Aden, such bookings were conditional upon separate approval even though MTL already had existing booking in place for such service for which MTL fully paid.

DAMAGES

25. As a result of the foregoing, with respect to containers CMAU5454680, TCLU5063972, upon information and belief, the source of such being MTL and its financial statements, MTL's customer has ceased doing business with MTL to MTL's detriment constituting potential lost income. Upon information and belief, the source of such being MTL's financial statements, the sales from January 1, 2015 to August 8, 2018 with the customer relating to these containers amounted to \$1,250,900.26. To date, such customer has not resumed doing business with MTL.

26. Upon information and belief, the source of such information being MTL, the client referenced in paragraph 25 above, had to pay approximately \$17,000 in connection with getting the containers released.

27. Upon information and belief, the source of such information being MTL, as to container FCIU8052464, MTL's client had to pay around \$10,000.

REQUEST FOR A HEARING

28. Complainant respectfully requests a hearing in Washington, D.C.

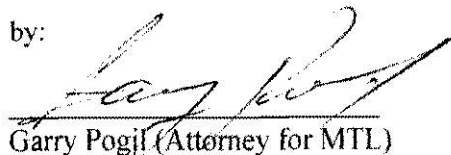
INFORMAL DISPUTE RESOLUTION

29. This matter was previously in mediation via Complainant's Rapid Response Request and request for mediation filed on or about July 14, 2018; however, the Jeddah containers have not been released by CMA and continue to accrue substantial demurrage/storage charges.

WHEREFORE:

- a. Complainant is respectfully requesting an Order for the containers at issue to be released.
- b. Complainant is respectfully requesting a hearing on the damages and all issues.
- c. Any other relief that the Court deems just and proper.

by:



Garry Pogil (Attorney for MTL)
112 West 34 Street, 18 Floor
New York, NY 10120
Tel: 917-593-1466
Fax: 646-349-3468
Email: garry.pogil@gmail.com

VERIFICATION

Alla Solovyev, being duly sworn, states that she is the President of MTL (Complainant), and that the foregoing is true to her own knowledge, except as to matters herein stated to be alleged on information and belief. As to the matters stated to be alleged on information and belief, Complainant believes them to be true.


Alla Solovyeva

Subscribed and sworn to before me this 05 day of August, 2019

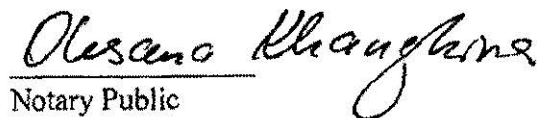

Notary Public



EXHIBIT "8"

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Case No.: _____

MARINE TRANSPORT LOGISTICS, INC

Complainant,

vs.

CMA-CGM (America), LLC

Respondent

FORMAL VERIFIED COMPLAINT

Marine Transport Logistics, Inc., (hereinafter "MTL"), by its attorney, Garry Pogil,
complaining of the Respondent, CMA-CGM (America), LLC, (hereinafter "CMA") as follows:

PARTIES

1. MTL is a corporation duly organized under the laws of the State of New York, with a principal place of business at 63 New Hook Road, Bayonne, NJ 07002.
2. MTL is a Non-Vessel Operating Common Carrier (NVOCC), duly licensed by the Federal Maritime Commission (hereinafter "FMC"). Email: alla@mtlworld.com
3. CMA is a Vessel Operating Common Carrier (VOCC), located at One Meadowlands Plaza, Suite 201, East Rutherford, NJ 07073.

JURISDICTION

4. FMC has subject matter jurisdiction over the claims in this action as the above-captioned matter involves contracts for carriage of goods by sea. 46 U.S.C.S. 30701, and the Shipping Act of 1984, 46 U.S.C.S. 40101, et Seq.

FACTUAL ALLEGATIONS

5. Upon information and belief, the source of such being MTL, in or around December of 2017, CMA contracted with MTL for shipping the following containers from United States to Yemen: CMAU7430348, SEGU4981655, TCNU1194396, ECMU9385446, ECMU9889149, BEAU4065028, CMAU5454680, TCLU5063972, and GVCU5007582.

6. Upon information and belief, the source of such information being MTL, CMA was paid by MTL the full freight/shipping charges for all of the above-mentioned containers.

7. Containers CMAU7430348, SEGU4981655, TCNU1194396, ECMU9385446, ECMU9889149 and BEAU4065028 were never delivered to the contracted destination, namely the Port of Aden. Upon information and belief, the source of such information being conversions between MTL and CMA, such containers were never delivered to the contracted destination in Yemen because according to CMA, the authorities in Yemen would not accept such containers due to that country's political landscape.

8. On or about December 6, 2017, CMA e-mailed MTL stating that they will no longer accept bookings of all motor vehicles where the Port of Discharge was Aden in Yemen. Such email also contained an exception for existing bookings, which stated in part: "For existing bookings falling under the above restrictions where the container has been released to the shipper, but not received by CMA CGN, CMA CGN will allow a Change of Destination (COD) to any other Port of Discharge..." However, on or about November 17, 2017, CMA emailed MTL stating: "Please continue to book."

9. On or about January 19, 2018, CMA e-mailed MTL stating that "We can resume service to Aden, but each bkg is subject to approval before being confirmed." Additionally, same

email stated: "Also, do to rising costs caused by the war, we need to raise our rate effective 2/1." Upon information and belief, CMA never justified the manner in which CMA's costs were raised by the war. Additionally, upon information and belief, if according to CMA, service to Aden was resumed, CMA never justified failure to timely ship and deliver the subject containers (CMAU5454680, TCLU5063972 and GVCU5007582) to the contracted destination at the Port of Aden after such containers were accepted at the terminal and were still at the terminal in New York.

10. On or about January 24, 2018, CMA e-mailed MTL stating: "As FYI, I've been informed Yemeni authorities are now instructing us to not accept autos. Seems they cannot make up their minds."

11. On or about January 31, 2018, CMA e-mailed MTL stating: "Per our trade team, we stopped accepting all Automobiles to Yemen since November 2017."

12. Upon information and belief, the source of such information being MTL, with respect to the containers listed in paragraph 5 above, MTL agreed to change the destination and requested a waiver of any charges for storage and demurrage in the Port of Jeddah, and if no waiver were granted, then a list of all charges was requested. However, irrespective of such, CMA did not change the destination, did not cancel the charges, and CMA did not provide a full list of the charges.

13. As to containers CMAU5454680 and TCLU5063972, upon information and belief, the source of such information being MTL, while CMA accepted such containers at the terminal, CMA never loaded such and kept such in New York, citing political instability in Yemen. However, upon information and belief, CMA did not load the containers on a ship that would

have arrived in Yemen before the cited political conflict in that country. Upon information and belief, the source of such being conversations between CMA and MTL, CMA also cited missing consignee information as the reason for failing to load the containers, all of such was denied by MTL.

14. Upon information and belief, CMA failed to rectify the issues addressed in this complaint irrespective of MTL reaching out to CMA on multiple occasions.

FIRST CAUSE OF ACTION

(Violation of Section 41102(c) of the Shipping Act)

15. Complainant repeats paragraphs 1 to 14 above.

16. Respondent violated Section 41102(c) of the Shipping Act in that such respondent failed to establish, observe, and enforce just reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivery of property by failing to deliver the cargo to the contracted destination; by providing conflicting information as to the country conditions and customs regulations in Yemen, namely the Port of Aden; by failing to provide accurate and complete accounting of detention/demurrage/storage charges; by failing to change the port of destination in a manner that other similarly situated carriers have done; and by failing to timely load the cargo, specifically as to subject containers CMAU5454680, TCLU5063972 and GVCU5007582.

SECOND CAUSE OF ACTION

(Violation of Section 41104 (9) of the Shipping Act)

17. Complainant repeats paragraphs 1 to 16 above.

18. Respondent violated Section 41104 (9) of the Shipping Act in that, such Respondent imposed undue and unreasonable prejudice or disadvantage with respect to the Port of Aden by providing conflicting and vague information with respect to such Port's political landscape and customs regulations, causing Complainant to rely on such; and by failing to ship and divert Complainant's cargo.

THIRD CAUSE OF ACTION

(Violation of Section 41104 (10) of the Shipping Act)

19. Complainant repeats paragraphs 1 to 18 above.

20. Respondent violated Section 41104 (10) of the Shipping Act in that, such Respondent unreasonably refused to deal or negotiate by failing to release the containers even though, upon information and belief, the freight for such was fully paid and MTL was negating in good faith as to the issue of detention/storage charges that continued to accrue for approximately eight (8) months and continues to date. Additionally, even when Respondent confirmed that it would resume service to the Port of Aden, such bookings were conditional upon separate approval even though MTL already had existing booking place for such service for which MTL fully paid.

DAMAGES

21. As a result of the foregoing, with respect to containers CMAU5454680, TCLU5063972, upon information and belief, the source of such being MTL and its financial statements, MTL's customer has ceased doing business with MTL to MTL's detriment constituting potential lost income. Upon information and belief, the source of such being MTL's financial statements, the sales from January 1, 2015 to August 8, 2018 with the customer relating

to these containers amounted to \$1,250,900.26. To date, such customer has not resumed doing business with MTL.

22. Upon information and belief, the source of such information being MTL, the client referenced in paragraph 19 above, had to pay approximately \$17,000 in connection with getting the containers released.

23. Upon information and belief, the source of such information being MTL, as to container FCIU8052464, MTL's client had to pay around \$10,000.

REQUEST FOR A HEARING

24. Complainant respectfully requests a hearing in Washington, D.C.

INFORMAL DISPUTE RESOLUTION

25. This matter is currently in mediation via Complainant's Rapid Response Request and request for mediation filed on or about July 14, 2018; however, upon information and belief, six (6) containers have not yet been released by CMA and such continue to accrue substantial detention/storage charges.

WHEREFORE:

- a. Complainant is respectfully requesting an Order for the containers at issue to be released.
- b. Complainant is respectfully requesting a hearing on the damages and all issues.
- c. Any other relief that the Court deems just and proper.

by:

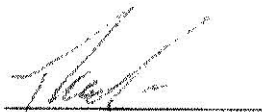

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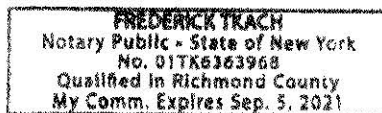
VERIFICATION

Alla Solovyev, being duly sworn, states that she is the President of MTL (Complainant), and that the foregoing is true to her own knowledge, except as to matters herein stated to be alleged on information and belief. As to the matters stated to be alleged on information and belief, Complainant believes them to be true.


Alla Solovyeva

Subscribed and sworn to before me this 16 day of August, 2018


Notary Public



Federal Maritime Commission

Docket No:18-07

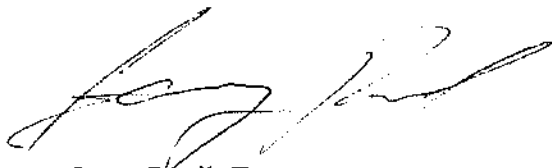
Certification of Service

I, Garry Pogil, an attorney duly admitted to practice in the States of New York and New Jersey affirm, that on August 6, 2019, I served, via First Class United States Postal Service and electronic mail the true copies of the with opposition papers, cross motion with exhibits on the following:

Draughn Arbona
5701 Lake Wright Drive
Norfolk, VA 23502

August 6, 2019

Respectfully Submitted,

A handwritten signature in black ink, appearing to read 'Garry Pogil', with a stylized flourish at the end.

Garry Pogil, Esq